

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephen DiFiore	Team: Squad #05	CCRB Case #: 202202526	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 04/21/2022 9:07 AM	Location of Incident: 145th Street "A/C/B/D" subway station	18 Mo. SOL 10/21/2023	Precinct: 30		
Date/Time CV Reported Thu, 04/21/2022 9:55 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Thu, 04/21/2022 10:42 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Amanda Lopez	02171	960825	TD 3
2. PO Anthony Filpo	17390	960542	TD 3
3. SGT Perry Quincoses	05441	947371	TD 3
4. LT Ralph Charles	00000	925063	TD 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Bryan Jones	20055	950645	TD 3
2. LT Dion Gaspard	00000	945749	TD 3
3. PO Kirill Ostrovskiy	16731	955285	TD 3

Officer(s)	Allegation	Investigator Recommendation
A . SGT Perry Quincoses	Abuse: Sergeant Perry Quincoses ejected § 87(2)(b) from the transit system.	
B . SGT Perry Quincoses	Abuse: Sergeant Perry Quincoses interfered with § 87(2)(b) use of a recording device.	
C . SGT Perry Quincoses	Force: Sergeant Perry Quincoses used physical force against § 87(2)(b)	
D . PO Amanda Lopez	Abuse: Police Officer Amanda Lopez threatened to arrest § 87(2)(b)	
E . SGT Perry Quincoses	Abuse: Sergeant Perry Quincoses threatened to arrest § 87(2)(b)	
F . PO Anthony Filpo	Abuse: Police Officer Anthony Filpo threatened to arrest § 87(2)(b)	
G . LT Ralph Charles	Abuse: Lieutenant Ralph Charles threatened to arrest § 87(2)(b)	

Case Summary

On April 21, 2022, § 87(2)(b) filed the following complaint at the Transit District 3 stationhouse.

On April 21, 2022, at approximately 9:07 a.m., § 87(2)(b) was at the 145th Street "A/C/B/D" subway station in Manhattan. He attempted to record police activity involving a group of officers from Transit District 3: Sgt. Perry Quincoses, Lt. Ralph Charles, Lt. Dion Gaspard, PO Amanda Lopez, PO Bryan Jones, PO Kirill Ostrovskiy, and PO Anthony Filpo. Sgt. Quincoses forcibly ejected § 87(2)(b) from the station by pushing him toward the exit, thus interfering with his use of a recording device (**Allegations A-B: Abuse of Authority, § 87(2)(g)** **Allegation C: Force, § 87(2)(g)** PO Lopez then threatened to arrest § 87(2)(b) (**Allegation D: Abuse of Authority, § 87(2)(g)** Sgt. Quincoses, PO Filpo, and Lt. Charles allegedly also threatened to arrest § 87(2)(b) (**Allegations E-G: Abuse of Authority, § 87(2)(g)** Officers did not make any arrests or issue any summonses.

The CCRB received BWC videos for all officers involved (Board Review 01-06, summarized in Board Review 07). The CCRB also received CCTV footage from the MTA (Board Review 08, relevant sub-clips in Board Review 09-15).

The CCRB obtained multiple cellphone videos § 87(2)(b) posted to his YouTube page, two of which are duplicate videos of the aftermath of the incident (Board Review 16-17), as well as videos depicting his minor injuries and subsequently prescribed pain medication (Board Review 18-21). § 87(2)(b) videos are summarized in Board Review 22.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Perry Quincoses ejected § 87(2)(b) from the transit system.

Allegation (B) Abuse of Authority: Sergeant Perry Quincoses interfered with § 87(2)(b) use of a recording device.

Allegation (C) Force: Sergeant Perry Quincoses used physical force against § 87(2)(b)

It is undisputed that Sgt. Quincoses and multiple other officers responded to the station for a report of an unidentified man with a malfunctioning pacemaker, and they were waiting near the station booth for the arrival of medical personnel. § 87(2)(b) witnessed the police interaction and momentarily stood within one of the turnstiles. § 87(2)(b) unaware of what incident was transpiring at the time, had some conversation with the officers who were present. Sgt. Quincoses ordered § 87(2)(b) to leave the subway station, ultimately gripping him by his right arm in order to do so. It is undisputed that Sgt. Quincoses ejected § 87(2)(b) from the station by means of physical force and that he interfered with § 87(2)(b) use of a recording device in the process.

§ 87(2)(b) testified that he noticed some commotion near the booth but could not tell exactly what was happening (Board Review 23). He then asked, "What's going on?" and took his phone out so that he could start recording. Sgt. Quincoses approached him and told him not to record after § 87(2)(b) walked through the turnstile. Sgt. Quincoses then grabbed § 87(2)(b) by his arms and "dragged" him out of the station. Sgt. Quincoses' grip caused pain to § 87(2)(b) arms. § 87(2)(b) acknowledged that he tried to drag his feet on the ground while Sgt. Quincoses forcibly escorted him to the exit. He further testified that the officers never told him why he was being ejected.

Sgt. Quincoses' BWC shows his interaction with § 87(2)(b) from beginning to end, though audio does not begin until Sgt. Quincoses resorts to physical force to remove § 87(2)(b) (Board Review 02). For the first 15 seconds of the video, Lt. Gaspard and another unidentified officer appear to be

providing some level of aid to a man who is on the ground. Sgt. Quincoses, PO Jones, Lt. Charles, and a second unidentified officer are all standing nearby. At 00:15, Sgt. Quincoses turns around to face the turnstile and Lt. Charles walks a few feet toward the turnstile. When Sgt. Quincoses turns around, § 87(2)(b) is standing directly behind the left-most turnstile and is holding his phone in his hands. Sgt. Quincoses gestures at him, and § 87(2)(b) appears to shrug in response. Lt. Charles says something to § 87(2)(b) and points back toward the man on the ground. § 87(2)(b) again says something as he waves his hands in front of his body three times. Sgt. Quincoses then points at § 87(2)(b) and approaches him. § 87(2)(b) then walks through the turnstile and points toward the exit. Sgt. Quincoses also points toward the exit as § 87(2)(b) stops walking momentarily, puts his hands up, and then takes a few steps away from the turnstiles. By 00:36, the distance between § 87(2)(b) and the turnstiles is now visible. § 87(2)(b) continues standing with his hands up as Sgt. Quincoses points toward the exit.

At 00:43, Sgt. Quincoses grabs § 87(2)(b) by his right arm and begins pushing him toward the exit. § 87(2)(b) attempts to plant his feet on the ground as Sgt. Quincoses walks him to the stairs. At 01:05, § 87(2)(b) sticks his leg out in front of him and presses it against the side of the stairs, pushing backwards to prevent Sgt. Quincoses from walking him up the stairs toward the exit. Sgt. Quincoses tells him that he is being ejected. § 87(2)(b) repeatedly asks why, and Sgt. Quincoses repeatedly tells him that he is being disorderly. At 01:21, Sgt. Quincoses again tells § 87(2)(b) that he is being disorderly. § 87(2)(b) responds, “For what? For taking a video?” Sgt. Quincoses responds, “You’re being disorderly.” § 87(2)(b) again asks, “For taking a video?” Sgt. Quincoses responds, “Yes, ejected,” as they reach the top of the stairs. The remainder of the video shows Sgt. Quincoses telling § 87(2)(b) that he was ejected for blocking the turnstiles while § 87(2)(b) talks over him.

Sgt. Quincoses, interviewed less than five months after the incident, testified that he was responding to the incident with the man in need of medical aid when he heard some “commotion,” namely § 87(2)(b) yelling, but Sgt. Quincoses could not remember what he was yelling (Board Review 24). § 87(2)(b) yelling drew Sgt. Quincoses’ attention and Lt. Charles’ attention away from the ill civilian. When he looked at § 87(2)(b) he noticed that he was blocking the left-most turnstile and appeared to be trying to record with his phone. Upon noticing that § 87(2)(b) was blocking the turnstile, Sgt. Quincoses ordered him to leave the subway station. However, Sgt. Quincoses was unable to localize when he gave this order while reviewing his BWC video. Sgt. Quincoses cited two reasons for ejecting § 87(2)(b) disorderly conduct and blocking the turnstiles. § 87(2)(b) was disorderly in that his yelling was distracting to the officers rendering aid. Sgt. Quincoses acknowledged that § 87(2)(b) never physically approached the ill civilian or the officers assisting him. When asked if § 87(2)(b) actually blocked any other commuters from using the turnstile, Sgt. Quincoses said that he saw a woman exiting the station. When asked specifically if this woman changed directions while approaching the turnstiles with § 87(2)(b) still there, Sgt. Quincoses said, “I just saw her leaving. I didn’t see anything else. Saw her – like – leaving.”

When § 87(2)(b) refused to leave voluntarily, Sgt. Quincoses grabbed him by the right arm and pushed him to the exit. Sgt. Quincoses acknowledged that PO Filpo and PO Lopez helped him but was unable to say exactly how they helped. When asked why he responded, “Yes,” in the video footage when § 87(2)(b) asked if he was being ejected for filming, Sgt. Quincoses testified that he was just telling § 87(2)(b) what he wanted to hear in an attempt to calm him down so that he could eventually explain the actual reason for the stop. Sgt. Quincoses denied that he ejected § 87(2)(b) for using a recording device.

A sub-clip of the MTA’s CCTV footage shows that § 87(2)(b) stood at the turnstile for approximately ten seconds before making the above-referenced hand-waving motion (Board Review 10). It does show him appearing to speak to the officers from the other side of the turnstiles prior to

Sgt. Quincoses approaching, but the volume of his speech cannot be determined due to the lack of audio.

PO Lopez ultimately created a transit ejection report documenting that § 87(2)(b) was ejected for blocking the turnstiles (Board Review 25, page 3).

§ 87(2)(b) recorded short videos taken after the incident depicting redness on his right arm consistent with being tightly gripped (Board Review 18-19, 21). § 87(2)(b) was treated at § 87(2)(b) Hospital. § 87(2)(b) His medical records confirm that he had bruising on his right upper arm, and that he reported that officers grabbed him arms and pushed him while he was filming.

Patrol Guide Procedure 212-20 states, “Any person who violates any portion of NYCRR Part 1050, regardless of whether or not that person has also been issued a Transit Adjudication Bureau/Notice of Violation (TAB summons) or a Criminal Court Summons for that violation, is subject to ejection from New York City Transit facilities.” It further states that officers may use necessary force to eject a passenger “when necessary to eject a passenger.” (Board Review 26).

Section 1050.6(a) of the New York City Rules and Regulations states, “No person may perform any act which interferes with or may tend to interfere with the provision of transit service, obstructs or may tend to obstruct the flow of traffic on facilities or conveyances, or interferes with or may tend to interfere with the safe and efficient operation of the facilities or conveyances of the authority” (Board Review 27, page 12). Section 1050.7(j.4) prohibits any person from interfering with or impeding the movement of passengers or personnel within the transit system (page 15).

Patrol Guide Procedure 221-01 states, “Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody” (Board Review 28).

NYPD Legal Bureau Bulletin, Volume 50, Number 1 states, “An individual’s recording of police activity without any additional action intended to obstruct the performance of an officer’s duty or threaten public safety does not amount to interference.” Examples of actual interference include touching or physically interfering with an officer, unreasonably encroaching on the area of an enforcement action and refusing an order to move back, and engaging in passive, non-violent behavior that still prevents an officer from taking an enforcement action (Board Review 29).

Administrative Guide Section 304-10 states, “Individuals have a right to lawfully observe and/or record police activity including, but not limited to detentions, searches, arrests or uses of force. The right to lawfully observe and/or record police activity extends to individuals in public places, such as streets, sidewalks, and parks, as well as private property in which the individual has a legal right to be present, such as buildings, lobbies, workplaces or an individual’s own property. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/recording.” The Administrative Guide directs members not to “intentionally prevent, or attempt to prevent, an individual from recording police activities.” It further reiterates the Legal Bulletin’s language that a person’s action must amount to actual interference before officers can take enforcement action against them (Board Review 30).

§ 87(2)(g)

§ 87(2)(g) he remained several feet away from the officers. He did not physically interfere with the officers, § 87(2)(g)

Additionally, § 87(2)(b) walked through the turnstile and began walking away from the ill man, and toward the station exit, once Sgt. Quincoses appeared to alert him to the fact that he was blocking the turnstiles. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (E) Abuse of Authority: Police Officer Amanda Lopez threatened to arrest § 87(2)(b)

Allegation (F) Abuse of Authority: Sergeant Perry Quincoses threatened to arrest § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Anthony Filpo threatened to arrest § 87(2)(b)

Allegation (H) Abuse of Authority: Lieutenant Ralph Charles threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that after he was ejected, all four officers who were near him advised him that he could be arrested if he went back inside the station.

Various BWC videos show that the four officers who were near § 87(2)(b) after he was out of the station were Sgt. Quincoses, Lt. Charles, PO Lopez, and PO Filpo. BWC further confirms that only PO Lopez advised § 87(2)(b) that he could be arrested if he went back downstairs. No other officer made a similar remark. PO Lopez's BWC (Board Review 01) confirms that PO Lopez arrived on scene as the incident with § 87(2)(b) was unfolding, and therefore would have had limited knowledge of the facts surrounding § 87(2)(b) ejection.

New York State Penal Law Section 140.05 states, "A person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises" (Board Review 31).

§ 87(2)(g) PO Lopez arrived at the scene well after the interaction with § 87(2)(b) began, § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 32).
- Sgt. Quincoses has been a member of the NYPD for 14 years and has been a subject in six other CCRB complaints and 11 other allegations, none of which were substantiated. § 87(2)(g)
- PO Lopez has been a member of the NYPD for six years and has been a subject in one other CCRB complaint with two allegations, neither of which were substantiated. § 87(2)(g)
- PO Filpo has been a member of the NYPD for six years and this is the first CCRB complaint to which he has been a subject.
- Lt. Charles has been a member of the NYPD for 22 years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of May 31, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 33).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 5

Investigator:	<u>Stephen J. DiFiore</u> Signature	<u>Inv. Stephen DiFiore</u> Print Title & Name	<u>November 16, 2022</u> Date
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Squad Leader:	<u>Daniel Giansante</u> Signature	<u>IM Daniel Giansante</u> Print Title & Name	<u>November 22, 2022</u> Date
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Reviewer:	 Signature	 Print Title & Name	 Date
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